

ZeroPay Technology — Mutual Non-Disclosure Agreement

BETONIQ(WEST) Limited | Patent-Pending Protection | CAC No. 56802

MUTUAL NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

ZeroPay Technology — Patent-Pending Offline NFC Payment Protocol BETONIQ(WEST) Limited | CAC No. 56802 | Abuja, FCT, Nigeria

This Mutual Non-Disclosure and Confidentiality Agreement ("Agreement") is entered into as of the date last signed below, between:

DISCLOSING PARTY:

BETONIQ(WEST) Limited CAC Registration No. 56802 Abuja, Federal Capital Territory, Nigeria Represented by: Tom Ugbodaga, Founder & CEO Email: zeropointfeild_nonwnt@zeropay.site Phone: +234 706 525 2117 (hereinafter "ZeroPay" or "Disclosing Party")

AND

RECEIVING PARTY:

[Full Legal Name of Organisation] [Registration Number] [Registered Address] Represented by: [Name], [Title] Email: [Email] (hereinafter "Receiving Party")

COLLECTIVELY referred to as "the Parties."

RECITALS

WHEREAS, BETONIQ(WEST) Limited is the owner and sole inventor of ZeroPay — a patent-pending offline-first NFC contactless payment protocol incorporating Physical Unclonable Function (PUF) hardware authentication, Elliptic Curve Cryptography (ECC) P-256 offline transaction signing, and Distance Bounding Protocol anti-relay security ("the ZeroPay Technology");

WHEREAS, the Parties wish to explore a potential business relationship, partnership, licensing arrangement, investment, or strategic collaboration ("the Purpose");

WHEREAS, in connection with the Purpose, each Party may disclose to the other certain Confidential Information (as defined below);

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

CLAUSE 1 — DEFINITION OF CONFIDENTIAL INFORMATION

1.1 "Confidential Information" means any and all information or data disclosed by either Party to the other in connection with the Purpose, including but not limited to:

(a) The ZeroPay patent-pending cryptographic architecture, including but not limited to: the PUF silicon authentication protocol, the ECC P-256 offline transaction signing mechanism, the Distance Bounding Protocol implementation, the Offline Batch Settlement Engine design, and the Solar Mesh Hub LoRaWAN relay architecture;

(b) Technical specifications, firmware designs, hardware schematics, circuit board layouts, and protocol layer documentation;

(c) Business plans, financial projections, revenue models, investor presentations, and pitch materials;

(d) Customer data, merchant data, partner agreements, and commercial terms;

(e) Trade secrets, know-how, algorithms, source code, and proprietary processes;

(f) Any information marked "CONFIDENTIAL," "PROPRIETARY," or communicated in circumstances reasonably indicating confidentiality.

1.2 The following shall NOT constitute Confidential Information: (a) Information that is or becomes publicly known through no breach of this Agreement; (b) Information independently developed by the Receiving Party without reference to Confidential Information (with documented proof of independent development); (c) Information lawfully received from a third party without restriction.

CLAUSE 2 — OBLIGATIONS OF RECEIVING PARTY

2.1 The Receiving Party agrees to: (a) Hold all Confidential Information in strict confidence; (b) Not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party; (c) Use Confidential Information solely for the Purpose defined in this Agreement and for no other purpose; (d) Limit disclosure within its own organisation to individuals with a strict need to know, each bound by equivalent confidentiality obligations; (e) Apply at minimum the same standard of care to protect Confidential Information as it applies to its own confidential information, but in no case less than reasonable care.

2.2 The Receiving Party expressly agrees NOT to: (a) File any patent application, utility model, or intellectual property registration that incorporates, is derived from, or is substantially similar to the ZeroPay Technology disclosed under this Agreement; (b) Reverse engineer, decompile, or disassemble any ZeroPay hardware or firmware; (c) Use the Confidential Information to develop, directly or indirectly, any competing product or service substantially similar to ZeroPay; (d) Disclose the existence of this Agreement or the discussions between the Parties without prior written consent.

CLAUSE 3 — INTELLECTUAL PROPERTY OWNERSHIP

3.1 All Confidential Information and any intellectual property embodied therein remains the sole and exclusive property of the Disclosing Party.

3.2 This Agreement does not grant the Receiving Party any licence, right, or interest in any patent, copyright, trademark, or trade secret of the Disclosing Party.

3.3 BETONIQ(WEST) Limited's patent-pending invention disclosure, timestamped April 2026, establishes priority over the ZeroPay Technology. Any subsequent patent filing by the Receiving Party on substantially similar technology shall be presumed to derive from this disclosure and shall constitute a material breach of this Agreement.

CLAUSE 4 — TERM AND TERMINATION

4.1 This Agreement shall commence on the date of last signature and remain in full force and effect for a period of FIVE (5) YEARS.

4.2 The obligations in Clause 2.2 (prohibition on patent filing based on disclosed IP) shall survive termination of this Agreement indefinitely.

4.3 Either Party may terminate this Agreement upon 30 days written notice, but all confidentiality obligations accrued prior to termination shall survive.

CLAUSE 5 — REMEDIES

5.1 The Receiving Party acknowledges that any breach of this Agreement would cause irreparable harm to the Disclosing Party for which monetary damages would be insufficient.

5.2 In the event of breach or threatened breach, the Disclosing Party shall be entitled to seek injunctive relief, specific performance, and any other equitable remedy available, in addition to all damages and legal costs.

CLAUSE 6 — GOVERNING LAW AND DISPUTE RESOLUTION

6.1 This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria.

6.2 Any dispute arising under this Agreement shall first be submitted to mediation. If mediation fails within 30 days, the dispute shall be referred to binding arbitration under the Lagos Court of Arbitration Rules.

CLAUSE 7 — ENTIRE AGREEMENT

7.1 This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior discussions, representations, and agreements.

7.2 No amendment to this Agreement shall be valid unless in writing and signed by both Parties.

SIGNATURES

DISCLOSING PARTY — BETONIQ(WEST) LIMITED

Name: Tom Ugbodaga Title: Founder & CEO Signature: _____ Date: _____
CAC No. 56802 | Abuja, FCT, Nigeria

RECEIVING PARTY

Name: _____ Title: _____ Organisation: _____
Signature: _____ Date: _____

IMPORTANT NOTICE: This Agreement protects patent-pending technology. Violation of Clause 2.2 shall be pursued to the fullest extent of Nigerian and international intellectual property law.